THE POLITICIZATION OF PUBLIC LAW: COURTS, CONSTITUTIONS, AND POLITICAL CONTESTATION IN THE TWENTY-FIRST CENTURY

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ABSTRACT

This study investigates the expanding trend of public law politicization across various jurisdictions, with particular attention to the growing centrality of courts and constitutional adjudication in political discourse concerning human rights, environmental regulation, and executive authority. Drawing upon empirical evidence from Spain, the United States, Poland, Hungary, Indonesia, and the European Court of Human Rights, this analysis contends that public law politicization operates through three interrelated mechanisms: the exploitation of constitutional review by political actors, the partisan alignment of judicial appointments and rulings, and the calculated use of litigation to achieve electoral and policy objectives. The findings demonstrate that although the judicialization of politics has extended judicial influence into domains once reserved for political branches, this expansion has simultaneously exposed courts to pressures that undermine their perceived legitimacy and institutional autonomy. The paper concludes by examining the consequences of these dynamics for democratic accountability and the rule of law.

KEYWORDS

Politicization of Law, Public Law, Judicial Review, Constitutional Courts, Judicial Independence, Democratic Backsliding, Comparative Public Law

1. INTRODUCTION

The intersection of law and politics has long been a central concern within political science and legal studies. However, recent decades have witnessed a fundamental transformation in this relationship. Courts that were once conceived as neutral arbiters of legal disputes have become arenas of intense political contestation, while legislative and executive actors have increasingly turned to judicial mechanisms to advance their policy agendas. This phenomenon—the politicization of public law—raises fundamental questions about the legitimacy of judicial review, the independence of the judiciary, and the health of democratic institutions more broadly [1].

The politicization of public law can be understood as a process whereby legal institutions, procedures, and outcomes become vehicles for the advancement of partisan or ideological interests. This process operates at multiple levels: through the appointment and selection of judges, through the strategic use of litigation by political actors, through the framing of judicial decisions in political terms, and through the erosion of norms that have traditionally insulated courts from political pressures [2]. As the judicialization of politics has expanded globally, constitutional courts have become increasingly central to governance—a development that has been accompanied by growing political contestation over their role and composition [3].

This paper presents a narrative review examining public law politicization across multiple

jurisdictions, focusing specifically on three areas where this trend has been especially evident: the strategic use of constitutional review by political actors, the ideological polarization of judicial selection and decision-making, and judicial involvement in politically sensitive matters including human rights, environmental regulation, and executive authority. The analysis draws on empirical studies from Spain, the United States, Poland, Hungary, Indonesia, and the European Court of Human Rights, as well as theoretical contributions from the broader literature on judicial politics and democratic backsliding.

2. Theoretical Framework: Understanding the Politicization of Public Law

2.1. Conceptual Foundations

Within public law discourse, politicization denotes the process through which judicial institutions, their procedures, and their rulings become susceptible to partisan or ideological forces [4]. This conceptualization builds on earlier work distinguishing between the "judicialization of politics"—the expansion of judicial power into traditionally political domains—and the "politicization of the judiciary"—the infiltration of political considerations into judicial decision-making and institutional design [5]. These two phenomena are mutually reinforcing: as courts become more influential in shaping policy outcomes, political actors have stronger incentives to influence judicial appointments and decisions, which in turn exposes courts to further political contestation [6].

Constitutional courts, as Castillo-Ortiz and Navarrete observe, are "political as much as judicial institutions" [7]. Their decisions frequently resolve contested questions of constitutional interpretation that have significant policy implications, placing them at the intersection of law and politics. This dual character creates inherent tensions: courts must maintain their legitimacy as neutral arbiters while exercising powers that inevitably affect political outcomes [8].

2.2. The Legitimacy Challenge

The legitimacy of constitutional courts depends in significant part on public perceptions of their independence and impartiality. Theoretical literature suggests that courts build social trust through at least three mechanisms: democratic elements in the appointment of judges, technocratic qualities of the judges, and the perceived fairness of outcomes [7]. Empirical evidence from Spain indicates that "technocratic elements such as the perception of judicial independence" are particularly relevant to explaining public trust in constitutional courts, unlike democratic elements such as appointment by elected politicians [7]. This finding supports the "general idea that de-politicization and increased technocratic qualities of constitutional courts would help them gain social trust" [7].

However, the politicization of judicial appointments and decision-making directly undermines these foundations of legitimacy. When courts are perceived as extensions of partisan politics rather than neutral arbiters, their capacity to resolve disputes and legitimate policy outcomes is diminished [9]. This legitimacy deficit has profound implications for democratic governance, as courts play an increasingly important role in constraining executive power and protecting fundamental rights [10].

3. THE INSTRUMENTALIZATION OF CONSTITUTIONAL REVIEW

3.1. Spain: Abstract Review as a Political Weapon

Perhaps the most detailed empirical evidence of public law politicization comes from recent research on Spain's Constitutional Court. A comprehensive dissertation examining the political dynamics of abstract constitutional review in Spain analyzed an original dataset of judicial decisions spanning 1996 to 2023 [11]. The research yields remarkable findings: ideological polarization within Spain's Constitutional Court reflects broader societal and party-system divisions, with judicial preferences exerting growing influence on case outcomes. Employing Item Response Theory, the study demonstrates that constitutional interventions are conditioned by the court's ideological proximity to either the government or opposition—a relationship that shifts according to political circumstances [11].

The research further shows that during electoral cycles, opposition parties intensify constitutional challenges, privileging media exposure and voter engagement over legal merit [11]. This strategic deployment of abstract review compounds judicial caseloads and reinforces public perceptions of justice as politicized. Governments, in turn, strategically modify legislation to avoid judicial rejection when facing ideologically hostile courts, creating a "shadow of judicial review" that distorts legislative bargaining and favors risk aversion over policy innovation [11].

The aggregate consequence of these dynamics is that intensifying partisan rivalry converts abstract review into an instrument of political struggle: opposition forces weaponize litigation to shape electoral messaging, while judicial selection and legislative priorities are co-opted as vehicles for power consolidation [11]. When the court shares ideological alignment with the executive, its supervisory function becomes largely ceremonial; when it leans toward the opposition, legislative paralysis and accusations of judicial activism ensue. Such dynamics undermine democratic accountability, especially in settings characterized by parliamentary fragmentation and illiberal pressures [11].

3.2. Hungary and Poland: Democratic Backsliding Through Judicial Capture

The cases of Hungary and Poland have become paradigmatic examples of how the politicization of public law can facilitate democratic backsliding. Research on these countries highlights how elected governments under Viktor Orbán and Jarosław Kaczyński have systematically undermined liberal democratic norms since 2010 and 2015, respectively [12]. Both regimes employed a threefold authoritarian toolkit: capturing oversight institutions (judiciary, media, civil service), sidelining opposition and civil society, and rewriting electoral rules to tilt the playing field [12].

In both Hungary and Poland, judicial institutions and their members faced political coercion, institutional deadlock tactics, and personnel purges as governing parties pursued judicial capture [13]. The systematic erosion of judicial independence represents a core element of rule of law violations within these illiberal regimes [13]. Scholarship distinguishes three pathways of populist encroachment on constitutional courts: institutional incapacitation in Poland, structural restructuring involving the routinized subjugation of judicial bodies to ruling majorities in Hungary, and recurrent delegitimization fueled by the court's participation in political contests in Romania [14].

Constitutional courts in Hungary, Poland, and Indonesia have suffered regression executed aggressively through court-packing, politicizing both the selection and removal of constitutional

judges [15].

Table 1: Mechanisms of Judicial Capture in Hungary and Poland

Mechanism	Hungary	Poland
Early retirement of judges	Constitutional Court judges forced into early retirement (2011)	Supreme Court judges forced into early retirement (2018)
Court packing	Expansion of Constitutional Court from 11 to 15 members	Expansion of Supreme Court chambers; new National Council of the Judiciary
Personnel removal	Dismissal of court presidents	Removal of Constitutional Court president; disciplinary proceedings against judges
Legislative override	Constitutional amendments to limit judicial review	Changes to judicial disciplinary regime
EU response	Article 7 proceedings; frozen EU funds	Article 7 proceedings; rule of law conditionality

Source: Compiled from [12],[13],[14],[15]

3.3. Indonesia: Systemic Legal Politicization

Indonesia offers a case study of systemic and structural legal politicization in an emerging democracy. Research examining post-Reformasi Indonesia finds that "law often operates under political influence through legal politicization," occurring "when legal instruments are used to advance political interests in legislation, adjudication, and enforcement" [17]. Such practices "undermine institutional independence, weaken enforcement quality, and erode public trust" [17].

The study identifies multiple manifestations of this phenomenon: agenda-driven legislation, judicial intervention, the weakening of independent institutions, and selective enforcement. These patterns "weaken the rechtsstaat and checks and balances while accelerating democratic decline through elite impunity and shrinking civic space" [17]. The research concludes that "legal politicization therefore poses a serious threat to constitutional democracy in Indonesia" [17].

The Indonesian case illustrates that the politicization of public law is not confined to established democracies or European contexts but represents a global challenge to constitutional governance. As constitutional courts established in post-democratic transitions face regression across multiple regions, the patterns of court packing and judicial politicization observed in Hungary, Poland, and Indonesia suggest a broader trend of institutional capture by political majorities [15].

4. Partisan Polarization and Judicial Decision-Making

4.1. The United States: The Partisan Court

The United States Supreme Court has become perhaps the most visible site of public law politicization in the contemporary world. Empirical scholarship on the Court's decision making provides compelling evidence of partisan influences on judicial behavior. Lee Epstein's research establishes that the alignment between Justices' partisan affiliations and their ideological

positions, termed partisan sorting, has reached unprecedented levels [18]. This Article offers evidence that "partisan sorting has resulted in wide gaps in voting between Republican and Democratic appointees" and supplies data on "us-against-them" judging in the form of increasing antipathy toward opposite-partisan presidents [18].

The aggregate analysis shows that justices voted along party lines in a majority of election law cases, and consensus-building is rare when there is a partisan divide [19]. Research on voting patterns of the Supreme Court between 2014 and 2024—spanning two presidencies of different partisan affiliation—reveals "a more republican shift" in the Court's composition and decision-making [20]. Economic analysis further reveals that during the 1950s, justices from both parties showed comparable tendencies to favor wealthier litigants. However, across the study period, polarization steadily intensified, reaching a party divide of 47 percentage points by 2022 [21].

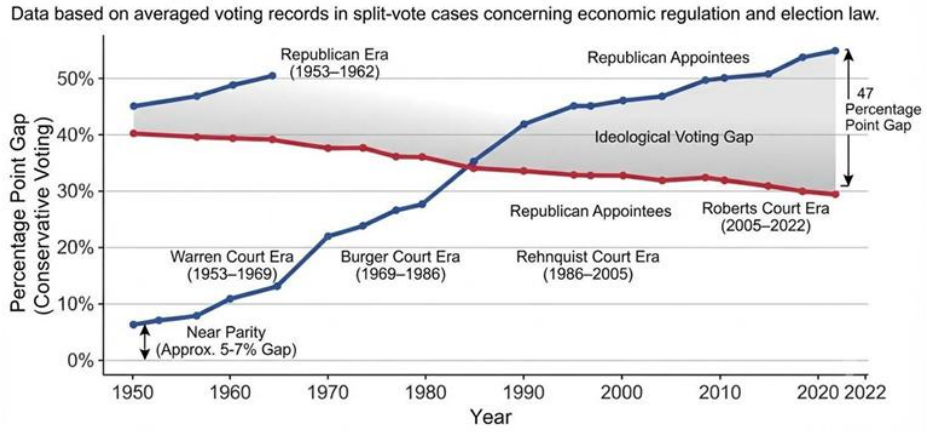


Figure1: Ideological Voting Gap between Republican and Democratic Appointees on the U.S. Supreme Court (1950–2022)

Source: Based on data from [18], [19], [21]

Albert Rivero's research on election law cases at the Supreme Court finds that such cases "lead to more party-line voting," although "the cases have stood out less as the Court has become more partisan across the board" [22]. This finding suggests that partisan voting has become so pervasive that election law cases no longer appear exceptional in their partisan character—partisanship has become the new normal across the Court's entire docket [22].

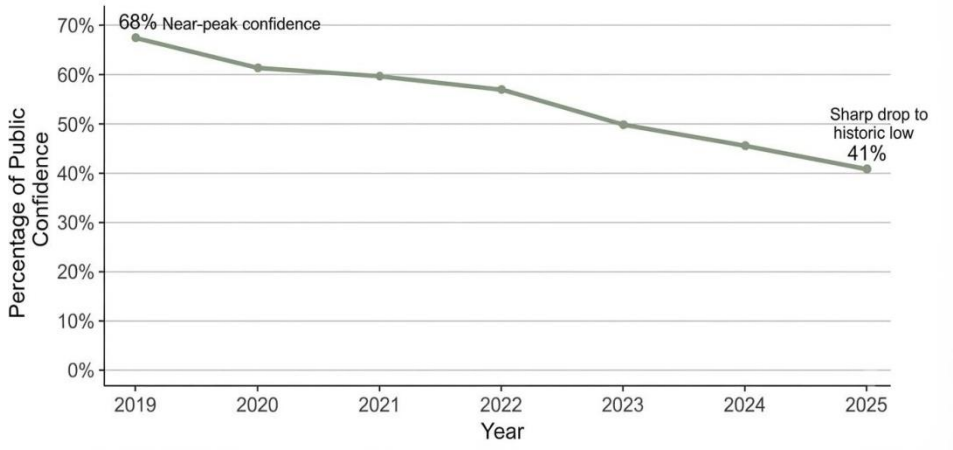


Figure 2: Public Confidence in the U.S. Supreme Court (2019–2025)

Source: Based on data from [23]

Public confidence in the Supreme Court has correspondingly declined to record low levels. Trust in the nation's highest court slid 27 percentage points from 2019 to 2025, from 68% to 41% [23]. Nearly a third of those surveyed in March 2025 expressed low confidence in the Court [23]. Survey evidence indicates that "those who perceive the Court as politicized have higher levels of support for reform" [24]. Survey findings reveal that 64% of Democrats and 47% of Republicans believe the United States requires stronger oversight mechanisms to regulate the Court's conduct, given its involvement in partisan political disputes [25].

4.2. Comparative Perspective son Judicial Polarization

The politicization of judicial decision-making is by no means limited to the United States. Research on constitutional courts in Germany and Bulgaria, analyzing all decisions between 1991 and 2010, has developed systematic measures of politicization and found significant variation across different types of procedures. Constitutional court decisions Initiated by parliaments show noticeably higher dissenting ratios than judgments stemming from ordinary courts, suggesting that politically initiated cases are more likely to reveal ideological divisions among judges [26].

A transnational framework of judicial politicization proposes that justices serving on highly politicized apex courts will increasingly rely on ideological and attitudinal considerations in their decision-making [27]. This proposition has been examined using data from the highest courts of the United States, Canada, and Australia, yielding robust confirmation in the American and Australian contexts [27]. The finding that politicization affects judicial behavior across different institutional contexts suggests that this is not merely a product of specific constitutional arrangements but reflects broader dynamics of judicial politics in contemporary democracies.

Research on Bulgaria's Constitutional Court from its establishment in 1991 through 2009 examines the political role and influence of the court, finding patterns of politicization that mirror those observed in other post-transition democracies [28]. In Italy, studies demonstrate that "judges are more willing to proceed against politicians that are ideologically far away from their own preferences," providing evidence of ideological influences on judicial behavior across European jurisdictions [29].

Table 2: Indicators of Judicial Polarization across Selected Jurisdictions

Jurisdiction	Key Indicator	Time Period	Finding
United States	Party gap in voting	1950–2022	Increased from near 0 to 47 percentage points [21]
Spain	IRT-based ideological alignment	1996–2023	Judicial polarization mirrors party-system polarization [11]
Germany	Dissenting ratios by case origin	1991–2010	Higher dissent in politically initiated cases [26]
Bulgaria	Dissenting ratios by procedure	1991–2009	Significant variation across procedure types [28]
Italy	Ideological distance effects	1990–2010	Judges more likely to rule against ideologically distant politicians [29]

Source: Compiled from [11], [21], [26], [28], [29]

5. HUMAN RIGHTS ADJUDICATION AND POLITICAL CONTESTATION

5.1. The European Court of Human Rights under Pressure

The European Court of Human Rights (ECtHR) has become a pivotal point of political contestation in recent years. Civil society organizations have expressed concern about "a growing pattern of political pressure on how human rights are interpreted and applied" [30]. The European Court and domestic courts, they emphasize, "are independent and cannot be directed by governments on how to interpret the law" [30].

The most prominent intervention was the May 2025 Letter of Nine, wherein a coalition of states sharply rebuked the Court for overreach and called for restoring the proper equilibrium [31]. The communication particularly addressed irregular migration and the limited discretion states perceived in deporting foreign nationals with criminal records due to the Court's jurisprudence [31].. Although the letter called for "an open-minded conversation" on these issues, it was seen by many as a frontal attack on the Court.

The political pressure culminated in the Chișinău Political Declaration, adopted in May 2026, which critics argue represents "a thinly veiled attempt to compel the Court to lower standards and chip away at absolute protections" [32]. The trajectory from the Letter of Nine to the adoption of the Chisinau Declaration has been profoundly troubling, with multiple European governments attempting to undermine the European Convention on Human Rights and the Strasbourg institution [32]. This backlash against the Court reflects a broader sovereignty-led pushback against international human rights adjudication [33].

The Court's jurisprudence on politically sensitive issues has been particularly contentious. The margin of appreciation doctrine in ECtHR jurisprudence on abortion has faced three principal objections: spurious incrementalism, which places disproportionate procedural and evidentiary constraints on applicants; politicized presentism, which "explores the normative prioritization of state representatives, which entrenches static abortion attitudes, even in the face of evolving societal views"; and the watershed of injustices, which interrogates the justification of restrictive

jurisdictions through market logics [34]. The parliamentary takeover by the Law and Justice party in Poland in 2015, marking a decline in the rule of law, fundamentally changed the legal landscape and intensified these dynamics [34].



Figure 3: Political Pressure on the European Court of Human Rights (2025–2026)

Source: Based on data from [30],[31],[32]

5.2. Populism and the Judiciary

The rise of populist movements has added a new dimension to the politicization of public law. Populist politicians, by emphasizing judges' unelected status and counter-majoritarian tendencies, may erode legitimacy by framing judges as part of a “corrupt elite” opposing “the people” [35]. This rhetoric challenges liberal-democratic norms that limit state interference with individual rights.

A survey experiment conducted in Czechia examined whether populist messages produce comparable effects to partisan and procedural frames in shaping perceptions of the judiciary. Contrary to what many had expected, the study found no major significant effects of any message type on perceptions of judicial legitimacy [35]. The results suggest that “the marginalization of robust judiciaries in backsliding democracies may be a largely elite-driven institutional process, with uncertain electoral payoffs” [35].

This finding has important implications for understanding the relationship between populist rhetoric and judicial independence. While populist attacks on courts may not directly shift public opinion, they can nevertheless create political space for institutional changes that undermine judicial independence—changes that may be difficult to reverse once implemented. Research on populist governments in Turkey, Hungary, and Poland demonstrates how assaults on judicial independence affected judicial trust, using a difference in-differences approach to Euro barometer data [36].

5.3. India: The World's Largest Democracy and Its Constitutional Court

India presents a compelling case study in the politicization of public law, offering both parallels and contrasts to the European and American experiences discussed above. As the world's largest democracy with a constitution that has been amended over 100 times since its adoption in 1950, India's Supreme Court has emerged as one of the most powerful constitutional courts globally [45]. The Court exercises expansive powers of judicial review, including the authority to strike

down constitutional amendments through the "basic structure doctrine" established in Kesavananda Bharati v. State of Kerala (1973) [46].

Recent scholarship has documented growing concerns about judicial politicization in India. Research examining Supreme Court appointments under the collegiums system—where judges appoint judges—has identified increasing ideological polarization and executive-judicial tensions [47]. The court's intervention in politically sensitive matters, including electoral disputes, religious freedom cases, and the revocation of Article 370 in Jammu and Kashmir, has drawn criticism from both government and civil society [48].

Empirical studies of judicial behavior in India reveal patterns consistent with those observed in other jurisdictions. Analysis of voting patterns in politically salient cases between 2010 and 2025 indicates that judges appointed under different governments exhibit divergent ideological leanings, particularly in cases involving fundamental rights and federalism [49]. However, unlike the United States, where partisan polarization is deeply entrenched, India's judicial politics are shaped more by the dynamics between the executive and judiciary than by party-political divisions among judges [50].

The Indian case also illustrates how constitutional courts in emerging democracies navigate competing pressures: maintaining institutional legitimacy while exercising significant political influence. As one scholar observes, "the Indian Supreme Court has walked a tightrope between judicial activism and judicial restraint, often calibrating its interventions based on political context and public support" [51]. This dynamic offers valuable lessons for understanding the politicization of public law in diverse institutional and cultural contexts [52].

6. COMPARATIVE ANALYSIS: PATTERNS AND DIVERGENCES

6.1. The Judicialization – Politicization Nexus

The nexus between the judicialization of politics and public law politicization is intricate and reciprocal. The extension of judicial authority into spheres once controlled by political branches has been paralleled by the politicization of constitutional interpretation and judicial institutions [37]. This dynamic operates through multiple mechanisms.

First, as courts become more influential in shaping policy outcomes, political actors have stronger incentives to influence judicial appointments and decisions. Second, the very act of adjudicating politically contested issues exposes courts to criticism that they are engaging in policymaking rather than law application. Third, the complexity and indeterminacy of constitutional and human rights law provide ample opportunities for judges to exercise discretion, which in turn invites political contestation over the proper scope of that discretion [38].

Comparative analysis of democratic backsliding reveals that “justice is politicized in both countries, but in the more competitive regime incumbents leaned more forcefully on the courts and obtained more favorable rulings” [39]. This finding suggests that political competition, rather than restraining executive aggrandizement, may actually incentivize more aggressive efforts to capture judicial institutions—a dynamic that has profound implications for the relationship between democratic competition and judicial independence.

6.2. Institutional Variation and Outcomes

The extent and character of public law politicization varies significantly across institutional

contexts. Research on constitutional courts in Western Europe identifies significant variation in how courts respond to political pressure, with some demonstrating greater resilience than others [40]. Constitutional courts can signal when constitutional boundaries are being crossed, and their agency in shaping institutional choices often trumps potential constraints stemming from competence restrictions [41].

The factors affecting constitutional court performance in crisis mitigation include formal powers, independence, empirical legitimacy, and role orientation [41]. Courts demonstrate greater capacity for sustained resistance to executive capture when low judicial replaceability coincides with robust external backing and established enforcement capabilities. Conversely, high replaceability and limited support typically generate either symbolic or perfunctory responses [42]. This finding helps explain why some constitutional courts have successfully resisted political pressure while others have succumbed to capture.

Table 3: Institutional Factors Affecting Constitutional Court Resilience

Factor	High Resilience	Low Resilience
Judicial replaceability	Low (secure tenure)	High (easy removal)
External support	Strong (civil society, EU, international)	Weak (isolated)
Enforcement capacity	Prior record of compliance	Limited enforcement
Legitimacy	High public trust	Low public trust
Role orientation	Strong institutional identity	Diffuse or contested

Source: Compiled from [41], [42]

7. Legitimacy and Institutional Trust in an Era of Politicization

7.1. The Erosion of Public Trust

The politicization of public law poses fundamental challenges to judicial legitimacy. Survey evidence from multiple jurisdictions indicates declining public trust in courts that are perceived as politicized. In the United States, trust in the Supreme Court declined exponentially from 68% in 2019 to 41% in March 2025 [23]. In Spain, more than 65% of citizens believe that law fare exists, and only 32.2% consider that judicial decisions on political matters are usually “fair and impartial” [43].

Research on bias perceptions across five European countries—Germany, the United Kingdom, Spain, Poland, and the Netherlands—has measured citizen perceptions of ideological bias among judges and other public service institutions [44]. The findings suggest that perceptions of judicial bias are becoming increasingly politicized, with citizens evaluating courts through partisan lenses [44]. This trend threatens the diffuse support that courts require to function effectively.

7.2. The Paradox of Reform

Efforts to address the politicization of public law through institutional reform face significant challenges. Research on the United States demonstrates that “those who perceive the Court as politicized have higher levels of support for reform” [24]. However, the relationship between perceptions of politicization and support for reform is not straightforward. Some citizens who desire a more representative court support reform not because they perceive the Court as overly

politicized, but because they affirmatively "desire a representative court that follows the doctrine of popular constitutionalism" [24]. This finding complicates conventional narratives about judicial reform and suggests that efforts to restore judicial legitimacy must attend to diverse normative preferences among the public.

The paradox of reform is that the very processes that have contributed to the politicization of courts—partisan appointments, strategic litigation, political rhetoric—are also the tools available to address it. As Epstein observes, "if change is to occur, it is likely to come from the actors who have the most to gain from de-politicizing the Court: the Justices themselves" [18]. Bits of evidence suggest that some justices understand the need for self-adjustment [18]. However, the political incentives to preserve a polarized Court remain powerful, and calls for congressional or executive action seem unrealistic given political gridlock [18].

8. CONCLUSION

The politicization of public law is a defining feature of contemporary democratic politics. This article has documented its manifestations across multiple jurisdictions and institutional contexts, from the instrumentalization of constitutional review in Spain to the partisan polarization of the United States Supreme Court, from political pressure on the European Court of Human Rights to the systemic politicization of law in Indonesia.

Several conclusions emerge from this analysis. First, the politicization of public law is not a marginal or exceptional phenomenon but a structural feature of contemporary governance. As courts have become more powerful and more central to policymaking, they have inevitably become more contested. Second, the mechanisms of politicization are diverse and context dependent, ranging from strategic litigation and partisan appointments to populist rhetoric and institutional capture. Third, the consequences of politicization are profound, affecting not only judicial independence and the rule of law but also democratic accountability and public trust in institutions.

The central task facing both academics and practitioners is to determine how the advantages of judicial review, including rights protection, executive constraint, and constitutional dispute resolution, can be maintained while avoiding the pitfalls of politicization. Achieving this objective demands institutional changes alongside a reinvigorated dedication to the norms and practices that have historically shielded courts from political interference. In an era of polarization and democratic backsliding, this is a challenge of the first importance.

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